



ELECTRICITY OMBUDSMAN, UTTAR PRADESH

Representation No. C-20 of 2026

Maa Shakumbhari Plastic Udyog Kumarhera, Dehradun Road, Saharanpur-247001 (U.P.) through Proprietor Mr. Vipul Arora son of Mr. Kisan Lal Arora, resident of 75-A, Raipur Road, Dehradun, Uttarakhand-248001

..... Representationist

VERSUS

1. Paschimanchal Vidyut Vitran Nigam, through its Managing Director, Urja Bhawan, Victoria Park Meerut-250001.
2. Executive Engineer, Vidyut Vitran Khand-II, Paschimanchal Vidyut Vitran Nigam Ltd., Saharanpur.

..... Respondents

Counsel of Representationist : Mr. Mohd. Rafi Khan, Lucknow.
Counsel of Respondent No. 2 : Mr. Isar Husain, Lucknow.

ORDER

The instant Representation has been filed by Maa Shakumbhari Plastic Udyog Kumarhera, Dehradun Road, Saharanpur-247001 (U.P.) through Proprietor Mr. Vipul Arora son of Mr. Kisan Lal Arora, resident of 75-A, Raipur Road, Dehradun, Uttarakhand-248001, being aggrieved by the Order dated 05.12.2025 passed by Electricity Ombudsman, Uttar Pradesh in Representation No. 21 of 2025, which has been registered as Representation No. C-20 of 2026 dated 13.04.2026.

The Order dated 05.12.2025 passed by Electricity Ombudsman, Uttar Pradesh is as follows: -

"Hence, the assessed units 200638 kVAH based on difference in meter readings of main and double pole meter taken from MRI Reports for the period 01.12.2019 to 08.06.2020 calculated by the Licensee is correct. But this fact cannot be avoided that the defect of main meter came to the knowledge of the Licensee only when the supply of the Representationist was disrupted and Licensee checked the metering system to resume the supply on 08.06.2020. As



per the provisions the Licensee should take monthly readings of both main & double pole meter and raise the bill accordingly. If regular readings of both the meters had been taken by the Licensee, then the defect of main meter could have been detected in the month of December-2019 itself. Since, it shows clear negligence in routine work of Licensee, the Representationist should not be penalised. Therefore, it would be reasonable that the Licensee will not levy any surcharge on assessed bill.

*The Representation is **disposed of.***

The representation was heard on 28.04.2026 & 11.06.2026 and Order was reserved.

The Representationist, Maa Shakumbhari Plastic Udyog Kumarhera, in its representation dated 08.04.2026, has stated as follows: -

“The deponent is the occupier and in possession in abovementioned premises and authorized to swear this affidavit and is well conversant with the facts deposed hereunder. Applicant in the above matter and as such fully coversant with the facts & circumstances of the case. This application seeks review of Order dated 05.12.2025 passed in Representation No. 21 of 2025, whereby petitioner’s petition has been disposed by this Hon’ble Electricity Ombudsman with following grounds and evidenc. Petitioner requested this Hon’ble Electricity Ombudsman to use his power of review and may be exercised on the discovery of new and important matter or evidence which, after the exercise of due diligence was not within the knowledge of the person seeking the review or could not be produced by him at the time when the order was made; that power of review will be exercised where some mistake or error apparent on the face of the record is found. Opposite party had not any MRI report of the pole meter as it was several time demaned by this Hon’ble Electricity Ombudsman during the pendency and hearing of the petition and it is admitted fact that the wire of pole meter was not connected with the connection. Every time opp party demanded for time with new excuses for time in his official letter filed before this Hon’ble Electricity Ombudsman and unfortunately it was overlooked in the Order passed by this Hon’ble Electricity Ombudsman Order dated 05.12.2025 passed in Representation No. 21 of 2025 this matter related to heavy financial loss if it not treated as per law petitioner will face irreparable losses. Thus, in view of the above, the following grounds of review are maintainable the review as stipulated by the statute: will be maintainable: - on discovery of new and important matter or evidence which, after the exercise of due diligence, was not within knowledge of the petitioner or could not be produced by him. The petitioner noticed "No display" with interrupted electricity supply itself and



reported in 08.06.2020. The Respondent himself has furnished in the counter that there was "No Display" but it is not known how Kwh and units consumed have been recorded in the consumer ledger. It is regretted to note that the Respondent has replaced the defective meter on same day. MRI Report saying itself that "Status Ok" is not present on the MRI report and reading comparison was filed by the opposite party. That till today opp party has not provided complete MRI report of disputed period of both metering instrument. That till today opp party has not filed MRI of pole meter of that disputed period and without MRI report of other pole meter opp party demanding bill on fake presumption of self-made assessment, the difference of 20638 kVAH Units reading which is not sustainable in the eye of law. The department found two phase wire are not ok in the metering instrument, but they did not check pole meter because pole meter was not found ok therefore, they are demanding Provisional demand as assessment without follow the prescribed procedure just to harass the deponent showing in the bill is without any evidence that concerned Executive Engineer did not follow the procedure prescribed in U.P. Electricity Supply Code, 2005. It is stated that till today opposite party has not filed MRI of pole meter of that period and without MRI report of pole meter opposite party raising bill demand on fake presumption of self-made assessment of defective pole meter on their own basis, on the average three months difference which is taking after disputed period of any months is illegal and not sustainable in the eye of law. *That Opposite party is not taking average of three months average maximum reading prior to disputed period and not multiplying with disputed month period.*

It is most respectfully prayed that this Hon'ble Court may kindly be pleased to modify its Order dated 05.12.2025 passed in Representation No. 21 of 2025 upto the extent that bill will be made as per MRI report of disputed period if MRI report not available than reading average maximum reading prior to disputed period and not multiplying with disputed month period shall be taken."

The Respondent No. 2 Executive Engineer, Vidyut Vitran Khand-II, Saharanpur, has filed Preliminary Objections dated 28-04-2021 and has stated as follows: -

"The application of the applicant is for recall of the final Order dated 05-12-2025 passed by this Hon'ble Authority after affording an opportunity of hearing to both the parties. The present application is not filed under the provisions of law, CGRF and Electricity Ombudsman Regulation have no provision for recall or review of the own order passed by the Hon'ble Electricity Ombudsman, thus present application dated 05-05-2025 for recall of the



order is not maintainable in the eyes of law and deserves to be dismissed with costs. A bare perusal of the Order dated 05-12-2025 it clearly shows that the order is passed after affording an opportunity of hearing to both the parties and the copy of the judgment and order served upon both the parties in time, the applicant filed the application dated 05-04-2026 after a lapse of about 120 days, thus present application is without any provisions of law and without complying the terms of the order and thus present application deserves to be dismissed and may be so dismissed with costs. The as a matter of fact the applicant had an opportunity to file writ petition if aggrieved against the order under the provisions of law, since the present applicant has not challenged the order passed by this Hon'ble Authority, the order has become final and binding on the parties and thus present application deserves to be dismissed with costs. This Hon'ble Authority has not reviewed its own Order in any of the case decided, any application can be entertained only under the provisions of law in the instant application the applicant has not mentioned any where under which provisions of law this application is filed, thus present application deserves to be dismissed and may be so dismissed on this ground alone. Wherefore, on the facts and circumstance of the present case, the application of the petitioner deserves to be dismissed with cost in the interest of justice.”

During the course of arguments, the Representationist reitreted the present review application seeking modification of the order dated 05.12.2025. The Representationist submitted that this court may kindly exercise the power of review on the ground of discovery of new and important facts and evidence which, despite due diligence, could not be produced earlier. It was further submitted that the opposite party failed to produce the MRI report of the pole meter. The Representationist also submitted that the wire of the pole meter was not connected with the electricity connection and assessment was made demanding provisional demand without following the prescribed procedure, therefore requested to recall / modification of the Order dated 05.12.2025.

Per contra, learned Counsel for the licensee submitted during the hearing that while deciding the order dated 05.12.2025, the aforesaid facts had already been duly considered by this Court in Page No. 10 and Page No. 11 of the order. He further submitted that no new fact or evidence has been produced by the Representationist in the present review application. The facts now being relied upon were already within the knowledge of the parties and had been duly considered by this Court at the time of passing of the original order. It was further submitted that the present application has not been filed under any provision of law, as the



CGRF and Electricity Ombudsman Regulations do not contain any provision for recall or review of an order passed by the Electricity Ombudsman and therefore, the present application seeking recall / review of the order is not maintainable in the eyes of law and deserves to be dismissed with costs.

The Representationist has made this application for recall / modification stating that the pole meter was not working properly and its MRI Report was not available for calculating actual consumption. He has further stated that since the actual consumption was not available, the Licensee has provisionally calculated the assessment for disputed period. The Representationist has assumed above as new discovered facts which could not be produced by him during the original proceedings. The assumption of the Representationist is not at all correct as while deciding the case vide Order dated 05.12.2025, this Court has clearly observed that the sealing certificate shows that the MRI of both meters were done on site and the pole meter was working properly during the disputed period. Additionally, a detailed comparison of MRI readings in the main and pole meter submitted by the Licensee has been produced in tabular form on page no. 11 of the Order.

Under the Code of Civil Procedure, 1908 (CPC), a Review is provided under Section 114 read with Order XLVII Rule 1: -

(1) Any person considering himself aggrieved—

(a) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred.

(b) by a decree or order from which no appeal is allowed.

(c) by a decision on a reference from a Court of Small Causes

And who, from the discovery of new and important matter or evidence which, after the exercise of due diligence was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record or for any other sufficient reason, desires to obtain a review of the decree passed or order made against him, may apply for a review of judgment to the Court which passed the decree or made the order.

In the present review application, the applicant has failed to make out any ground as contemplated under Section 114 read with Order XLVII Rule 1 of the Code of Civil Procedure,



1908. From a perusal of the record, it is evident that the issues and facts now raised by the applicant / representationist had already been duly considered by this Court while passing the order dated 05.12.2025, particularly in the page 10 and page 11 of the said order. No new fact or evidence has been produced by the Representationist which could justify reconsideration of the matter.

Accordingly, this Court finds no merit in the present application. The review / recall application is hereby **dismissed**.

Dated: ..15-06-26

(Sanjay Srivastava)
Electricity Ombudsman, U.P.

